

Alternative Development Finance Operations Act, 2003

Only the published memory of the nation

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Act No. 03 of the year 2083, an act
made to make provisions regarding the operation of alternative development finance

Preamble: Whereas it is desirable to operate alternative development finance to loans, trust funds and other financial or monetary instruments to manage the necessary resources for the overall economic integration and development of the country,

The federal parliament has enacted this act.

Section-1

Preamble

य. Inserted Name Preamble: (1) The name of this Act shall be "Alternative Emergency Management Act, 2083".

(2) This Act shall come into force on the one hundredth day after its ratification.

य. Definition: In this Act, unless the subject or context otherwise requires, -

(a) "Chairman" means the Chairman of the Committee.

(i) "Project" means a project as per clause (2) of section 4.

I remember.

(c) "Fund" means the Alternative Development Finance Fund established under section 6.

I remember.

(d) "Loan" means the loan made for investment in the project under this Act.

Remember that the funds were provided for the project development.

It also refers to bail.

(e) "Prescribed" or "as prescribed" means any provision made under this Act.

mniyama tokaeko va tokae bamoljam samjhanuchhan.

(f) Children born abroad of a Nepali citizen who are not of "Nepali origin"

I remember my children.

(g) "Authorized person for the purpose of carrying out the work" means the person appointed under section 19 of the Fund.

The prime minister is considered an authority.

(h) "Bank" means a commercial bank established under the prevailing law.

After understanding the Union Territory Development Bank, the foreign bank should be shifted to its office located in Nepal or to the bank office located in Nepal.

The open door also indicates the office.

(i) The term "Ministry" means the Ministry of Education.

(j) Double debt of Swiju (Ilwati) under the name of "Mamalit Vavattiya Uikin"

Understand the financial value of the self-contained solution.

(k) "Investment" means an investment in a project as defined in Article 24.

(l) "financial institution" means a financial institution established under prevailing law for the purpose of collecting money or issuing loans from the Government
I remember.

(e) "Alternative Development Finance" shall be operated in accordance with Section 3.

Understanding financial sources.

(n) "Member of the Committee" means a member of the Committee and that term includes the Chairperson.
It also indicates.

(o) "Committee" means the Board of Directors of the Company under Section 10.

Section 2:

Alternative Development Finance Operations and Use

ÿ. Alternative Development Finance to be Operated: To provide high economic returns in accordance with this Act,

The consideration, study, development or implementation of projects that will create employment opportunities, assist in the production of goods, or contribute to the economic development of the country.

For implementation, alternative development finance will be implemented through the following means:-

(a) Financial assistance or loan for a specific project

Loan or interest (interest) or debt or mixed financial instruments

Raise funds from investors or public institutions through,

(i) the Government of Nepal or any international financial institution or any body

Obtaining a guarantee from the institution or body implementing the project or

Project specific for such projects under the Fund's own guarantee

raise loans,

(c) Loan or partial loan from the Nepalese government or international financial institutions.

Guaranteed Fund Location Name of loan or debtor or debtor with financial institution
or financial institution

(d) Investment fund established by collecting funds from domestic or foreign investors,

(e) Provident Fund for Nepalese Citizens Employed Abroad (DEM)

(d) Non-resident Nepali or non-Nepali of Nepali origin

A sovereign democracy founded with citizen investment

(Sovereign Diaspora Fund) Location Gate,

(f) The monetary value of any entity or project,

(g) The establishment of an integrated fund (Rand Order) to invest in various funds established
to invest in renewable energy projects,

(h) Cooperation with banks and financial institutions in which the Nepalese teacher has a loan
or partial ownership in order to use other financial instruments as prescribed by the
Ministry of Education or the Ministry of Education to finance the education.

(Co-Issuance) ढ्यढ्यढ्य

ढ्य. Alternative Development Finance Use Plan: (1) Related to the following areas:

Alternative development finance will be invested in the project:-

(a) energy development or electricity generation,

(i) whether there is a dissemination or distribution,

(c) Road construction or expansion,

(d) arbitrariness or extension of rail demand,

(e) Construction or improvement of airports,

(f) arbitrary or extension of road demand,

(g) Construction of infrastructure such as special economic zones, industrial parks, and major
ports,

(h) Information technology, special allocation infrastructure, special sports infrastructure
Zinc storage is arbitrary,

(i) Right to vote,

(j) establishment and operation of digital gateways in public domain,

(k) Construction and operation of cableways, light lines or roads,

(l) Selection and operation of irrigation projects,

(d) Manipulation of manure or agricultural machinery and irrigation
Operation,

(n) Industrial sites based on agricultural production or agricultural by-products
Operation,

(n) Commercial agricultural production, cultivation, agriculture and livestock production
(a) Establishment and operation of forest

harvesting or herbal medicine production industries.

(2) Alternative development finance may be invested in any project that is considered to be a priority project within the scope of sub-paragraph (1) on the basis of the importance, feasibility and high economic return of such project:-

(a) Projects included in the National Project Bank,

(h) Proposal to implement the annual program of Nepali education
Gee's project,

(c) The Investment Board shall invest funds under public-private partnership.

The project or projects that are being implemented are being implemented,

(d) Projects that the Fund itself has considered appropriate for study and investment,

(e) A project prepared for investment in a public-private partnership with a bank or a financial institution established to invest in the investment of Nepalese students.

Ÿ. Projects not eligible for alternative development finance: Any project listed in paragraph (2) of Section 4.

If any, alternative development finance investment in any of the following projects

Will not be done:-

(a) Other than the projects referred to in clause (2) of Section 4.

Project, (i) Project

with an estimated cost of less than one billion rupees, (ii) Project with an estimated cost of less than one billion rupees, (iii)

Project with an estimated cost of less than one billion rupees, (iv) Project with an estimated cost of less than one

billion rupees, (v) Project with an estimated cost of less than one billion rupees, (vi) Project with an estimated cost of less than one billion rupees, (vii)

Planning,

(e) A project seeking a loan against a loan granted by the Fund or a debenture or a guarantee,

(f) A project to be implemented

by a natural person, (g) A project to be implemented by a company or

organization of which the incumbent general manager or authorized person has been a

shareholder, partner, general manager or member for at least three years before his

appointment as the authorized person, or a project proposed to be implemented in

partnership with such a company or organization. This section shall not be deemed

to have prevented an investment that had already been

made before the appointment of the incumbent general manager or

authorized person. Chapter-3 Location and operation of Alternative Development

Finance Fund

7. Location of Alternative Development Finance Fund: (1) An Alternative Development Finance Fund is hereby established to invest in the project. (2) The head

office of the Fund referred to in (1) shall be at Kathmandu, and the Fund may establish such offices or similar offices as may be necessary, whether within or outside the city.

7. The Fund shall be a privately owned body: (1) The Fund shall be a privately owned body with unlimited powers. (2) If the Fund has acquired legal personality,

the legal person shall have the same rights

The exercise of powers, performance of duties and obligations shall be in accordance with the law.

8. Structure of the Fund: (1) The authorized capital of the Fund shall be one thousand rupees and it shall be

A minimum of one hundred rupees will be divided into one hundred simple installments.

(2) The fund shall be of the highest quality and shall not exceed one hundred thousand rupees.

The amount of money will be divided into simple amounts.

(3) If any of the provisions of sub-paragraphs (1) and (2) are taken, the Government of Nepal, the Minister of Interior shall publish a notice in the official gazette and the authorized officer of the Fund shall be responsible for the payment of the amount. It can be increased.

(4) The number of cases in (1) and (2) is considered to be true.

The following institutions or groups of such institutions are hereby awarded the following scholarships:

Will be done:-

(a) Nepalese Sikhs

- Eve Coun not believed

(i) The following retirement funds or fund management institutions:

- Sixty percent

(a) Employee Accumulation Fund,

(b) Citizens Investment Fund,

(e) Commonwealth CIA Fund.

(c) Life insurance, life insurance companies (5) Insurance

- Chombas Pramattit

companies (4) Other institutions that provide insurance under the Nepal Insurance Act

The maximum amount of money that the buyer has agreed to pay is given in the following terms:

Varshamanbhatra chaktu gaarisavanuinech.

(6) The number of the beneficiaries under clause (c) and (d) of clause (4)

The decision will be made with the consent of the members of such groups, and if that decision cannot be made,

The same amount shall be determined.

(7) The amount allocated under clauses (i) and (c) of clause (4) shall be either

If someone leaves without paying a partial refund, such a person will be punished,

The sale will be made in accordance with the decision of the Council of Ministers.

(8) Any person who is guilty of an offence under clause (c) of sub-clause (4) shall

If I want to sell, the remaining group within the same group will be able to buy it and such

If the group does not want to participate, the Nepalese government, the cabinet, will decide accordingly.

It will be sold.

(9) Notwithstanding anything contained in any applicable law or elsewhere in this Act, If any regional government, local level, government fund other than the fund established under clause (4) of the Act under the prevailing law, or any government or inter-governmental financial institution wishes to liquidate the fund, the government may sell the fund's assets as per the decision of the Cabinet of Ministers, on the recommendation of the Committee.

The notice of the sale of the same shall be published in the Nepal Gazette.

(10) For the purpose of clause (9), the Nepalese teacher's loan (4) shall be credited to the fund. The number of shares held under section (a) shall not be less than twenty-six percent. It will be fine.

(11) Other provisions relating to the liabilities of the Fund shall be in accordance with the prevailing law.

9. Functions and duties of the Fund: (1) In addition to the functions and duties specified elsewhere in this Act,

The functions and duties of the Fund are as follows:-

- (a) The original population should be provided with financial resources for economic development, employment promotion and high economic growth.
- (i) To operate alternative finance as per Section 3 for the purpose of clause (a),
- (c) To obtain a loan by obtaining a guarantee from the Government of Nepal, Provincial Government, Local Level or any other organized organization or project,
- (d) To make financial investments in hydropower projects,
- (e) Loans from banks and other financial institutions, not contrary to prevailing laws.
To receive,
- (f) receipt of loans or grants from international financial institutions or foreign banks or financial institutions,
- (g) Malu Ku Mabhatra Va Vavadei Ijun Bajaima Rinitra Va Mamalit Vavattiya
To take back the loan or self-payment given to him,
- (h) The amount of the loan or loan amount to be paid, whether domestic or foreign.
To buy and sell shares listed on the stock exchange or to develop a floating exchange,
- (i) To take out loans or equity or dual financing for the project,

(j) Coordination with banks and financial institutions for the project

To facilitate the establishment of collateral,

(k) Establish a separate account fund for the purpose of investing in the project.

Count,

(l) Establishing a subsidiary company in its sole or partial ownership.

or in collaboration with the ^{no} or a partially owned bank,

Nuclear Development Bank or financial institution of the Government of Nepal
Project development or investment,

(m) The size of the management of the Alternative Development Finance Fund or other fund
Work,

(n) Providing services to public bodies to develop projects based on demand,

(o) To be listed in foreign exchange market with the approval of the Nepalese Central Bank.
And the mid-day sun is shining, shining,

(p) Any loan from an international financial institution approved by the Nepalese Bank.
Obtaining loans for projects and the need for such loans
To do unsolicited greetings,

(q) Any organization or project implementing a water project
How to make a financial intermediary (intermediary)
Whose work is it,

(d) A financial or other institution established under the prevailing law
(Alvvulgin) Gane,

(s) To monitor the projects for which the Fund has provided loans or guarantees,

(n) To perform other functions as may be prescribed in connection with the operation of alternative
development finance.

(2) The Fund may establish a separate company, subsidiary company or body for the
implementation of projects designated by the Minister of Education, Science and Technology, among
the projects developed by the Fund.

(3) The body or mind established in accordance with paragraph (2)
Financial institutions and domestic or foreign investors may collect funds in the form of debentures or
bonds or debt.

(4) The work to be done from the funds of the fund shall be done by the committee as per this provision.

Article-4

Provisions relating to the Steering Committee

10. Fund Management Committee: (1) The Fund shall be managed and operated by a committee as follows:

The steering committee will be:

- | | |
|---|---------------|
| (a) Secretary, Ministry (b) | - Chairman |
| Joint Secretary of the Ministry (c) | - Sanj driver |
| Minister of the Ministry concerned with youth development | |
| From the Joint Secretary of the Engineering Service | |
| One Joint Secretary appointed by the Ministry | - Sanj driver |
| (d) Section (i) of clause (4) of clause (8) | |
| One of the defendants' witnesses | |
| | - Sanj driver |
| Representative (e) Section (c) of Sub-section (4) of Section 8 | |
| One of the defendants' witnesses | |
| | - Sanj driver |
| Representative (f) Appointed from the committee, including at least one woman | |
| Two independent experts | - Sanj driver |

(2) The owner of the property under clause (i) or (c) of clause (4) of section 8

By agreement, the two groups of people who have been living together for two years will be separated from each other.

Soon there will be one driver each.

If such consent cannot be reached, the decision of such organization shall be final.

There will be one driver each time the lights go out.

(3) The Chief Executive Officer shall act as the Secretary of the Committee.

(4) The period of suspension of the driver under clause (f) of clause (1) shall be

The year will be marked by a period of one year.

(5) The Ministry shall issue a certificate of registration to the driver of the vehicle as per clause (i) and (c) of paragraph (1).

(d) (e) Bamoljam Manyaktu Hanusenchalaklai related to the

yyy yyyyyy yyy yyyyyy

(6) If the office of a director becomes vacant before the expiry of the term, the appointment shall be made for the remaining term through the same process by which the appointment was made.

(7) Directors other than the Chairman shall, before attending the meeting, obtain the Chairman's permission and the certificate of attendance in accordance with the prevailing law relating to attendance.

11. Qualifications of Independent Expert Manager: The following qualifications shall be required for appointment as an Independent Expert Manager: (a) A Nepali

citizen, (b) At least a Bachelor's

degree in Economics, Management, Commerce, Development Studies, Law,

Engineering, Financial Analysis or Finance and at least two years of managerial experience in a bank or financial institution, international financial institution or in the field of a development project, or at least three years of experience in the field of alternative finance operations or project analysis, or a First Class or above in the Government Service. (c) Have worked in any bank, financial institution, insurance company, fund management company or any company related to brokerage for at least three years.

12. Disqualification and vacancy of Independent Expert Director: (1) Any of the following persons shall be deemed to be disqualified from being appointed or continuing as an Independent Expert Director:- (a) who has lost the

qualifications required under Section 11, (b) who

has been convicted of a felony,

(c) Who has been found guilty of corruption, forgery, cheating, theft, property misuse, human trafficking or exploitation, usurpation, forcible destruction, destruction of ancient monuments or wildlife or any other criminal offence or moral turpitude,

(d) Being a director, shareholder or member of an organized organization implementing a project that has received a loan from the Fund or being a member of any financial institution or partner, (e)

Being a party to any deposit or loan agreement with the Fund in any way

Having involvement or having any interest,

(f) Being blacklisted under applicable law.

(2) The office of an independent expert director shall become vacant in any of the following circumstances:- (a) If he is disqualified from being a director as per clause (1), (b) If he is absent from three or more meetings of the committee without giving notice of his absence to the committee for reasonable cause, (c) If the Minister of Interior, upon the recommendation of the Committee, finds that the director is unable to perform his duties due to physical or mental illness, (d) in the case of the death of the person, in the case of the death of the person.

13. Procedures for the meeting of the Committee: (1) The meeting of the Committee shall be held at the time specified by the Chairman.

The need will be felt at the time and place.

(2) In case of a meeting of the Committee, the Secretary shall give at least twenty-four hours' notice to the Directors together with the agenda of the meeting, after appointing the Chairman. Such notice shall be given by electronic means. (3) The Chairman

of the Committee shall be the Chairman and in his absence, the Chairman as per clause (1) of section 10 shall preside over the meeting.

(4) If more than sixty percent of the members are present at a meeting of the Committee, the quorum shall be deemed to be

exceeded. (5) If any member is unable to attend the meeting due to being in Kathmandu or due to a travel emergency, and is unable to attend the meeting, he shall be deemed to have attended the meeting of the Committee through video-conferencing for the purposes of clause (4).

(6) The decision of the majority shall be valid in the meeting of the Committee and in case of a tie, the Chairman who presides over the meeting shall have the casting

vote. (7) The meeting allowance to be paid to the Chairman for attending and participating in the meeting of the Committee shall be fixed by the Committee with the

consent of the Ministry. (8) The Committee may invite the Secretary of the Ministry concerned with investment, any authorized person of the Ministry of Education or any

expert to the meeting of the Committee. (9) The Chairman appointed under clause (e) of clause (1) of section 10 shall not participate in the meeting which is held on any matter related to any project insured by his company.

(10) Other procedures related to the meeting of the Committee shall be as determined by the Committee itself.

14. Functions, duties and powers of the Committee: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Committee shall be as follows:-

(a) To approve and implement the policies, programs and plans of the Fund, (b) To give policy guidance to the Fund,

(c) To approve investment and financial assistance as required, (d) To determine the operational procedures of the various funds established under this Act,

(e) To study and evaluate projects in the energy or productive sectors that generate employment opportunities, economic growth or development, and to approve investments in projects

under paragraph (2) of Section 4.

(g) To monitor and evaluate the financial and investment activities carried out by the Fund,

(h) To ensure the sustainability and financial accountability of the resources and allocation of the Fund, (i)

To maintain institutional integrity in the functioning of the Fund,

(j) To approve, implement and maintain the necessary criteria or requirements to ensure climate change mitigation, environmental conservation, sustainable development and its positive social impact when investing in the project.

(k) To adopt necessary measures including insurance to mitigate and mitigate the risks of investment in the project, (l) To coordinate and cooperate with national or international financial institutions as necessary,

(m) To implement, enforce, and enforce this Act, the regulations made under this Act, other prevailing laws, the decisions of the General Assembly of the Fund, and established practices and practices related to project investment in alternative development finance operations or projects.

(n) To establish subsidiary companies related to the work to be carried out by the Fund in accordance with this Act, (o) To

convert the loan investment made by the Fund in any project or organized organization into equity,

(p) To carry out other work related to alternative development finance operations, Singing.

15. Information to be provided: (1) The following information shall be provided to the meeting of the committee within two months of the date of its appointment by the chairperson:- (a)

Details of the members of the committee and their families who participated in the meeting,

(h) Being or being a member of the board of directors of a company in which the fund of the person or any member of the family of the person is invested or in which the fund has invested,

(c) If he has made a contribution to the fund of the person or any member of his immediate family or if he has been a shareholder of any company in which the fund has invested, the number of contributions received by him and

the nature of the contribution, (d) If he has made a contribution to the fund of the person or any member of his immediate family during the last three years since his appointment.

Or has held or is holding a position as a managing director, chief operating officer, accountant, manager, operating director or any position that allows him to make decisions or influence decisions in any investment company in which the fund has invested,

(e) The fact that he is not disqualified from being appointed as a driver under section 12, (f)

The fact that he

has acted in any way while being a driver. (2) The Fund shall inform the driver under

sub-section (1) of this section of the

Keep the records.

(3) If the committee makes any decision that would jeopardize the independence of any director,

Such a director shall not participate in the discussion and voting on that matter.

(4) Any matter not disclosed by a director under sub-section (1) shall be deemed to be a matter of personal interest to such director who participated in the discussion held at the meeting of the said committee.

16. Responsibility and accountability of the director: (1) It shall be the responsibility of each director to perform the duties required to be performed in the capacity of director under this Act or the prevailing law, to perform the work on behalf of the fund and to act on behalf of the fund. (2) The directors shall

be individually and collectively liable for the duties under paragraph (1). (3) If any director, through malice or dishonesty, causes

damage or loss to the Fund, such director shall be personally liable for such damage or loss and shall be liable to action under the prevailing law.

17. Constitution of a Committee or Working Committee: (1) The Committee shall constitute a Committee for the purposes of this Act:-

(a) the Auditing Committee,

(i) Investment Committee,

(c) Risk Reduction and Management Committee.

(2) The formation, working period and working methods of the committee under sub-section (1) shall be as determined by the State Committee at the time of formation of such committee.

(3) The Committee may study, investigate or investigate any subject or

For the purpose of the study, working groups may be formed as needed.

(4) The scope of work of the working group formed under sub-clause (3) shall be determined by the committee

after the formation of such working group.

Section-5

Formation of the Fund

18. Formation and composition of the Fund: (1) The formation and composition of the Fund shall be decided by the Committee.

Education is a form of education approved by the Ministry of Education.

(2) The employees appointed by the Nepalese government in the formation of the association under paragraph

(1), the employees appointed to the service by the Fund for the purpose of the work and the service

I will remain knowledgeable about the work.

(3) The salary, service conditions and other facilities of the expert or employee appointed to the service or to

any service under sub-paragraph (2) shall be determined by the Committee with the consent of the Ministry.

The mind is confused.

19. Appointment of Chief Operating Officer: (1) A Chief Operating Officer shall be authorized to conduct the daily administration, management and operations of the Fund.

(2) The first working day of the authorized fund shall be paid to the first administrative officer.

It will be expensive.

(3) A three-member committee, headed by the Chairman of the Public Service Commission, shall be constituted

by the Government of Nepal and the Investment Board of the Bank of Nepal to consult the Government of Nepal, the Council of Ministers, and the Chief Executive Officer of the Bank of Nepal.

The recommendations should remain unanimous.

(4) The committee of the commission under sub-paragraph (3) shall, on the basis of representation, appoint an authorized

person to perform the duties of the commission from among the persons who have qualified for the commission under sub-paragraph (20).

The names of the three people mentioned above will be forwarded for consideration.

(5) The authorized person shall act on the basis of the representation provided for in paragraph (4).

The process of naming a person is determined by the naming committee.

(6) Preference will be given to individuals who have gained experience in alternative finance operations or

project analysis as mentioned in (4) above.

(7) Nepalese students from among the persons who have been convicted under paragraph (4),

The Council of Ministers will appoint one person as the authorized representative to carry out the work.

(8) The term of office of the Chief Executive Officer shall be four years

If the work is excellent, the position may be reappointed for another term.

It will be fine.

(9) The salary, service status and other facilities of the Chief Executive Officer shall be determined by

the Committee with the consent of the Ministry.

(10) If anything has been taken elsewhere in this regard, then it is a mistake.

The law in force until the official appointment or appointment of the employee is made

In the event of a suspension or a vacancy in the office, the period of suspension shall be up to such period.

The Joint Secretary of the Ministry, as designated by the Ministry, shall be the authorized representative for the purpose.

The fund will be managed.

20. Qualifications and disqualifications of the authorized person for the performance of the duties: (1) Qualifications and disqualifications of the authorized person for the performance of the duties:

A person shall be eligible to be appointed as a Director if he/she meets the following qualifications:-

(a) a Nepalese citizen,

(b) Those who have attained the age of sixty-five years and have not attained the age of sixty-five years,

(c) Financial Analysis, Economics, Management or Economics, Public Development Administration,
Economics from a recognized institution

At least a bachelor's degree in law or engineering,

(d) At least two years of managerial experience in infrastructure planning, project design and
development, public-private partnership, investment management, development
administration, banking, financial sector, industrial management or international financial
sector or institution,

(e) Not disqualified under clause (2).

(2) The following persons shall be appointed or retained as authorized persons for the purpose of carrying out their duties:

Tolerable Hanuchain: -

(a) Example (1) Not qualified as a lawyer, (i) Fraud, theft, human

trafficking or occupation, involvement of, organized crime, coercion, doing and not doing

Have been convicted by a court of law of any criminal offense involving moral turpitude, such as fraud,

(c) If a foreign national has obtained a permanent residence permit, he/she shall renounce it.

Unseen,

Acceptance For the purposes of this document, "permanent residence permit" means a foreigner who has not been ^{permission} granted a permanent residence permit, whether or not he/she has been granted a permanent residence permit.

Nepalese citizens who wish to permanently reside in Maluku

Available songs Diminishing Immigrant Women (MWF), Permanent

President Mahasabha (V.A.) and Green Card Understanding and So Changes

It also refers to a permanent residence permit, also known as a permanent residence permit, granted to Nepali citizens to reside abroad permanently.

(d) Blacklisted or otherwise blacklisted under applicable law

The person who escaped from the blacklist must have been in prison for at least three years.

None. (3)

In item (a) of question (1) and item (c) of question (2), which of the following

If the person has been taken, this Act shall not be taken for a period of more than four years from the commencement of this Act.

The person who has been granted a permanent residence permit shall be authorized to perform the duties of the authorized person.

The applicant shall not be deemed to have been prevented from applying for a visa under Section 19.

(4) The first working day shall be three days from the date of termination of the contract after the appointment of the authorized person.

Investments approved under this Act during the period of the annual general fund

Will not be involved in the project.

That is a full or partial ownership of a Nepalese teacher or a Nepalese teacher.

Involved in any project implemented by any organization under its control

Is this a hindrance to your life? A will not be accepted.

21. Situations in which the office of the authorized person becomes vacant : (1) In the following situations, the authorized person

The term of office of the Executive Officer shall be vacant:-

(a) If the disqualification of the accused under clause (2) of section 20 is

Or if found ineligible,

(i) Lack of efficiency, lack of response or unsatisfactory performance of the person in accordance

with paragraph (4) of Article 23.

(c) If the Minister removes him from the post on the recommendation of the Committee, (d) If the Minister

accepts the resignation given by him to

the Committee, (e) If the Minister dies. (2) A person who has been dismissed under sub-clause (b) of sub-clause (1) shall be given a

reasonable opportunity to

appeal. 22. Functions, duties and powers of the Chief Executive Officer: In addition to the functions, duties and powers specified elsewhere in

this Act, the functions, duties and powers of the Chief Executive Officer shall be as follows:- (a) To prepare proposals for the meeting of the Committee, (b) To submit proposals to the Committee for approval of the investment of the project, (c) To implement and

implement the decisions or instructions made by the Fund,

(d) To submit to the Committee for approval the Fund's program, annual budget, business plan or at least the periodic plan for the next three years, (e) To

submit to the Committee for approval the Fund's program, annual budget, business plan and Implementing the strategic plan, (f) Monitoring the implementation of projects invested from the fund

Submitting its report to the committee,

(g) To report to the committee on the feasibility of alternative finance and investment, (h)

To perform other functions as

determined by the committee.

23. Annual Report to be prepared: (1) The Chief Executive Officer appointed under section 19 shall prepare an annual report to be prepared within two months of his appointment as an authorized member of the Committee.

(2) In the work plan referred to in sub-section (1), the following matters shall be mentioned in addition to other matters:- (a) The work plan

to be prepared by the Chief Working Officer within one year and his/her responsibilities,

(b) The policy and program of the

Nepal Education Department related to the project, budget, strategic plan, proposals and decisions taken by the committee and the decisions taken by the committee.

(c) Description of the business program, plan, strategy, action plan and the scope and time frame for its implementation as mentioned in the proposal related to the proposed strategy and action plan, (d) Description of the performance indicators or results of the planned performance to be prepared to evaluate the performance of the work plan, (e) The quality of the work plan, if the performance is less than that stated in the work plan or if such performance cannot be achieved, the responsibility of the person concerned, (e) Other necessary matters related to the work plan. (3) The work carried out by the Chief Executive Officer under sub-section (1) shall be evaluated annually by an independent evaluator appointed by the Committee on the results and achievements of the work carried out or the quality thereof, whether the work has been carried out within the time limit or condition specified in the work order. (4) If the evaluation carried out under sub-section (3) shows that the work order is inadequate, the Minister, acting on the recommendation of the Committee, may remove the Chief Executive Officer from office. (5) Before removing the authorized person from the work under sub-section (4), he shall be given a reasonable opportunity to make amends. Section-6 Investment in the Project

24. Investment in projects: (1) The Fund may invest in projects under this Act, the Youth Development Policy of the Nepal Education Commission and the Fund's project investment policy, except for the funds held in its own fund or deposited in other funds under section 34, as provided for in sub-section (2) of section 4.

(2) For the purpose of sub-section (1), the Fund may invest in the project proposed by it in any or all of the following ways:- (a) Debt collection

and credit flow,

(b) credit flow,

(c) Clause (a) or (b) Imposition of self-lending loan, (d)

Providing multiple guarantees,

(e) Use of other financial instruments.

(3) The Fund may, in accordance with this Act, issue a notice to the Bank for the purpose of regulating and supervising the loan investment made in the project. It shall be the duty of the Fund to implement the notice so issued.

25. Study of the project to be conducted: (1) Before the Fund invests in a project proposed for investment in the Fund, the following study of such project shall be conducted:-

- (a) Overall economic and financial viability of the project,
 - (b) High per day survey probability,
 - (c) Ability to mobilize additional private investment for project implementation,
 - (d) the ability to contribute to the development of indigenous peoples and overall economic and social development,
 - (e) Authority to calculate the extent of employment, i
 - (f) Use of state or law.
- (2) In addition to the study of the project

under sub-paragraph (1), the Fund shall make arrangements to assess the risk of such project through a separate institution, organization or group. (3) If it is determined that an investment is to be made

based on the study under sub-paragraph (1) or (2), the Fund shall invest in a project with long-term and high returns and minimum risk.

(4) The Fund shall provide the necessary funds for making loan investments in the project. If such funds are not available, the Fund will fund the entire project.

26. Project Implementation Status: (1) Before commencing investment in a project earmarked for investment under Section 25, such project shall comply with the following conditions:-

- (a) To maintain environmental standards that are affected by the project and to use environmentally friendly construction materials and methods, (b) To maintain institutional governance,

(c) To arrange a mechanism for conducting risk analysis, market study, cost-benefit analysis and evaluation of the project, (d) To

arrange a mechanism for monitoring and evaluating the results obtained from project implementation.

(2) The project for which investment has been approved from the Fund shall, during the course of project implementation, undertake the

following steps: (a) Periodic assessment of technical, commercial, cultural, climatic and

environmental aspects, (b) Necessary arrangements for risk reduction of

the project, (c) Necessary coordination with the public-private sector and local communities, and Cooperation,

(d) Other side of the Tovaka Bmoljim.

27. Guarantee to be given: (1) The project implementing agency may, on showing cause that any type of guarantee from the Fund, the Government of Nepal or any other financial institution is required to secure the necessary investment for any project, request the Fund for such guarantee. (2) In case of request under sub-section (1),

the Fund may itself provide guarantee in part or in full for the following projects or may recommend the Government of Nepal or any other financial institution to the Ministry for providing guarantee:-

(a) The project has been found to be eligible for a guarantee based on the study of the fund and risk analysis, (b) It has been

recommended by the Ministry of Project Affairs, (c) It has

been included in the National Project Bank, (d) If the

project is implemented under public-private partnership, the recommendation of the Investment Board of Nepal has been obtained.

(3) If, on the basis of the recommendation of paragraph (2), a guarantee is approved by the Nepalese government or an international financial institution, the Fund may make investments to explore potential sources of alternative development finance.

(4) The Nepalese teacher who is granted bail under sub-paragraph (2) may, if the Minister of Education deems necessary, study and Analysis will be possible.

(5) In case of guarantee provided by the Government of Nepal or any international financial institution, the same shall be paid to the Nepal Government within a period of one month from the date of such guarantee being provided or approval being received. If the student has a guarantee, the Public Debt Management Office and the relevant financial institution will be informed along with the details thereof.

(6) Nothing in this Act shall be deemed to be bailable under the prevailing law. The authority of the All Nepalese teacher shall not be deemed to be limited or obstructed in any way.

(7) The Fund shall, in accordance with paragraphs (3) and (5), make such other arrangements as may be prescribed for the provision of security, recording of accounts and payment of dividends.

28. If any provision has been made in the project agreement to No: (1) Any person who has been convicted under this Act demand a return on investment or to make a payment, the Fund may demand a return on investment made to any organized organization or project or to make a payment on the investment in the following cases:-

- (a) If the project does not fully recover the investment,
- (i) If the investment is not used in the project but is used elsewhere or
Dradianti Giema,
- (c) If it is proven that the investment was obtained by providing false information or facts,
- (d) Permission or planning of work without due process
If the project is not implemented according to the implementation plan,
- (e) If the fund has invested in any other project and it has been implemented, what is the amount
of the loan that is repayable for such project?
If you don't speak properly,

(2) If the Fund, pursuant to paragraph (1), requests a statement of the amount of the loan investment The Fund shall pay the principal, interest and other charges of the loan provided to the project until the time of such demand. If there is any outstanding service, the relevant organization or project may also The fund will be considered a deferred payment.

(3) If the Fund fails to comply with the provisions of sub-clause (2), the Fund may, without prejudice to the provisions of sub-clause (1), take over the management of the project concerned and may, in its sole discretion, transfer the remaining funds to any other organization to implement such project.

29. Collateral and its effect: (1) When the Fund makes a loan or provides a guarantee for any project, any movable or immovable property or the project proposed to be implemented shall be taken as collateral, without prejudice to any provision in the prevailing law. (2) Notwithstanding anything

contained in sub-section (1), if a project borrows from the Fund by providing collateral, the Fund shall have the right to claim against such collateral if the same property is borrowed from any other person by providing collateral for the project or the project until the loan or guarantee of the Fund is paid. No other person shall have the right to claim against such collateral until the loan or guarantee of the Fund is paid. (3) Any agreement, contract, agreement, arrangement or transaction which is contrary to the provisions of sub-clause (2) and

which claims the right or interest of any other person shall be automatically cancelled. (4) Notwithstanding anything contained in sub-clauses (2) and (3), if a loan is granted on the basis of consortium finance or a project loan or a loan

secured by a mortgage, the position of all the lenders in such a loan shall be equal.

Section 7:

Conciliation and convenience

30. Treated with Loans: (1) Loans issued by the Nepal Education Fund under this Act shall be treated as Development Loans or Citizen Savings Loans issued by Nepal Education Funds or Loans issued by Nepal or Banks. Such loans may be listed on the Central Exchange or sold on the Second Exchange.

(2) Except as provided in sub-paragraph (1), other financial instruments issued by the Fund, including those listed on the secondary market and for the purpose of selling the securities on the secondary market, shall be treated and charged in the same manner as loans issued by the Nepalese government.

(3) If any bank or financial institution invests in any sectoral financial instrument issued by the Fund, such bank or financial institution shall be deemed to have invested in the sectoral loan specified in the prevailing law relating to banks or financial institutions.

(4) Other provisions relating to loans to be made by the Fund as prescribed.

Yes.

31. Grant of exemptions, facilities or concessions to investors: (1) The Government of Nepal, the Minister of Finance, may grant exemptions and other concessions to individual and institutional investors or organized organizations investing in financial instruments other than those approved by the Fund, in accordance with the

prevailing law. (2) The Government of Nepal, the Minister of Finance may grant special exemptions and facilities to financial instruments issued in lieu of foreign exchange for alternative development financing or financial instruments issued by the Fund for green sector projects. Approval: For the purpose of this document, the term "Green Sector Project" means a Green Sector Project classified by the Bank and includes renewable energy generation or transmission projects, sustainable development projects or climate adaptation projects.

exemption from the fees required : (1) Notwithstanding anything contained in the prevailing law, for the registration of the agreement, deed or other instrument for the investment made by the Fund in any project under this Act shall be granted.

(2) If the Fund has been granted a loan under sub-section (1), the Fund may, without any transfer of title to the property or project acquired by the Fund, waive the registration, transfer or deed fee in the name of the Fund, if the Fund is unable to transfer the property or project acquired by the Fund in its own name due to the lack of a bond or the existence of a debt. Section-8 Provisions relating to Fund Operation

33. Items to be kept in the fund: (1) The following items shall be kept in the fund as per Section 6:

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(a) The proceeds from the sale of the property under Section 8,

(i) Section 3 shall be obtained from alternative development finance operations
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(c) Funds received from the Nepalese government for the implementation of any
 project or institutional

development, (d) Loans or grants received from international financial

institutions, (e) Interest or profits received from investments made by the Fund,

(f) Funds for services or guarantee services provided by the Fund, (g)

Funds received for guaranteeing the loan investment of any organized organization
 or providing the services of a financial intermediary body.
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(2) The funds received under sub-section (1) shall be deposited in one or more accounts
 in a commercial bank of class "A" or a Development Bank of Nepal licensed by the Nepalese Bank
 or a Development Bank of Nepal as approved by the Committee. (3) When an

account is opened under sub-section (2), separate accounts shall be opened for Nepali
 Rupees and foreign currency.

34. Other Funds: (1) The proceeds from each financial assistance operation under the Fund shall be
 deposited in separate accounts in other funds.

(2) The nature of the financial resources of each fund under sub-paragraph (1) shall be as follows:
 Purpose wise fund should be maintained for a fixed period and sanctioned.

(3) The funds deposited in the fund under sub-section (1) shall be deposited in the bank
 account as per sub-section (2) and (3) of section 33. (4) Except as per sub-
 section (1), the fund shall carry on its business activities
 Other funds may be allocated as appropriate.

35. Establishment of General Reserve Fund and Independent Reserve Fund: (1) A General Reserve Fund
 shall be established by setting aside at least one percent of the total amount of the Fund's assets
 and then two percent of the total amount of the Fund's assets every year until the Fund has
 accumulated double

its assets. (2) The Fund shall deduct from the total amount of the Fund's assets as prescribed
 Another independent reserve fund (Free Reserve Fund) will be established.

(3) Bonus shall be paid from the fund established under (1) or (2).

There are many other works which can be used for making calculations.

36. Profit distribution: The fund or other fund under section 34 shall not be

Any of the following years of the fund or other fund under Section 34 from a person

If it is renewed, then the same amount will be charged to the General Reserve Fund and the Independent

How much is deposited in the reserve fund? How much of the remaining money will benefit the beneficiaries?

The answer will be given.

Section-9

Financial Action, Accounting and Auditing

37. Financial Statement: (1) The Fund shall prepare its financial statements every three months.

Benefits will be provided to Nepalese students and graduates.

(2) The Fund shall periodically make public the details of the funds under sub-paragraph (1) on its website.

(3) Other arrangements for financial exchange must be made.

38. Accounts of the Fund: (1) The Fund shall maintain its books of account, accounts, ledgers, ledgers and accounts.

The actual accounting shall be accurate and correct. (2) The

accounts maintained under (1) shall be based on the double-entry accounting system.

The accepted accounting principles and standards will be followed and the true status of the transaction will be given.

(3) The Fund

shall, in accordance with (1) and (2), provide alternative finance

The accounts of the Fund shall be kept separately for each financial year, including the accounts of the Funds collected.

(4) The accounts of the Fund shall be kept in English and

also in electronic form.

39. Submission of financial report: The Fund shall submit the financial report within three months from the end of the financial year.

The Ministry shall prepare an integrated financial report, giving the balance sheet and name loss of other funds under

Section 34 and the actual financial position of the fund.

The money will be spent.

40. Internal accounting and internal control system to be implemented: (1) The internal accounting of the operations of the Fund shall be carried out by the Office of the Comptroller and Auditor General or that Office.

The designated Fund and Accounts Controller's Office will be responsible for this.

(2) The Fund shall establish and implement an internal control system in accordance with applicable law to manage and mitigate financial, procedural or administrative risks.

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41. Accounting: (1) Final accounting of the Fund or other funds under Section 34.

It is done by the Accountant General.

(2) The Accountant General shall issue the accounting report pursuant to paragraph (1).

The operation and financial transactions of the surplus funds of the State as provided for in the law

In the accounting report, whether or not legal and financial standards are met

Reference will be made.

Article-10

Provisions relating to Fund Management

42. Fund Transfer: (1) The Fund shall receive the approval of the Government of Nepal, the Council of Ministers, in making the transfer. (2)

The Fund shall receive the approval of the transfer under sub-section (1)

The Ministry will then decide on the reasons for the decision, the work plan of the Ministry and the decisions of the Committee.

Sika, will be appointed to the Ministry of Foreign Affairs.

(3) If the above (2) is not met, the student will be required to study the subject.

Reason: Manmasab and action plan is given by the Government of India, the Cabinet Secretary

The relevant administrative process will be subject to approval by the government.

(4) If any money has been taken elsewhere in this regard, the Trust Fund shall

Reasonable grounds and grounds for believing that a person is capable of paying debts and obligations

Otherwise, the Nepalese government, the Minister of Interior, will not approve the proposal under (1).

(5) The Fund shall not be permitted to operate alternative development finance and invest in projects under this Act unless the Government of Nepal, Cabinet, has received prior approval for the project.

(6) Other provisions relating to the management of the Fund shall be in accordance with the prevailing laws relating to banks and financial institutions.

43. Provisions of the Bill: (1) If the Minister of Finance, in accordance with section 42, approves the appropriation of funds, the Committee shall consider the proposal for appropriation and shall approve the appropriation for that purpose.

(2) The committee appointed under sub-paragraph (1)

shall be responsible for the affairs of the company.

The powers conferred on the person shall be exercised in accordance with applicable law.

44. Fund's assets: (1) The Fund shall not be liable for any debt or obligation that may be immediately discharged.

To completely repay any debt or obligation that may be incurred at any time or in the future.

If a situation arises that cannot be resolved or if the value of the fund's liabilities exceeds the value of the assets, any of the following may file a petition with the court to initiate bankruptcy proceedings:-

(a) Funds come,

(i) Nepal Government,

(c) A debtor who owes more than the prescribed amount, or

(d) The fund has been allocated as per Section 43 for disbursement.

Malvadatti.

(2) Other provisions relating to the management of the Fund shall be in accordance with the prevailing laws relating to management.

Article-11: Trial,

punishment and prosecution of drug offenders

45. Penalties and Punishments: (1) Investments, loans or advances made from the Fund under this Act

Any person who provides false or incorrect information, evidence, report or other material to the Fund or engages in misconduct in order to obtain security or other facilities shall be liable to punishment under this Act.

It will be called "Geeko".

(2) Whoever commits an act under sub-section (1) shall be punished with imprisonment for a term which may extend to two years or with fine which may extend to two years, in addition to the fine imposed on the person who committed the act.

46. The action and punishment of the accused: (1) The punishment of the accused under section 45 (1)

The Nepalese government, the cabinet have also ordered the publication of information in the Nepali Gazette.

The authorities will take it.

(2) If the services or assistance of any expert is sought in connection with the investigation pursuant to sub-paragraph (1), the investigating officer shall be entitled to obtain such services or assistance and the cost of such services shall be borne by the Fund.

(3) Subsection (1) The investigating officer of the Bombay shall file an investigation report with the office of the prosecutor concerned within one day from the date of commencement of the investigation. (4) On the basis of the investigation report submitted under paragraph (3), the

prosecuting attorney concerned shall file a case in the relevant district court under the prevailing law preparing the prosecution.

47. Nepalese students to be plaintiffs: Nepalese students shall be liable for any punishment imposed under this Act.

The plaintiff is a plaintiff.

Section-12

Miscellaneous

48. General Meeting of the Fund: (1) An annual general meeting of the members of the Fund shall be held within one year of the establishment of the Fund and within six months of the conclusion of each financial year thereafter. (2) Other provisions relating to the general meeting of the Fund shall be in accordance with the prevailing law relating to public limited companies.

49. Annual operating budget of the Fund: (1) The Committee shall prepare and implement its operating budget for the annual operation of the Fund. (2) The Fund shall approve and implement its business plan every year.

50. Annual report to be submitted: (1) The Chief Executive Officer shall prepare an annual report containing the overall progress made by the Fund, the activities of other funds under Section 34 and the status of the funds raised from each financial source, the liabilities of the Nepalese government arising from the guarantee given by the Nepalese government to operate the Alternative Development Fund and other related financial information, and shall submit it to the Ministry within six months from the date of the end of the financial year, after approval by the General Assembly.

(2) The annual report prepared pursuant to paragraph (1) shall be made available to the public by the Ministry and shall also be published on the website of the Ministry and the Fund,

51. Periodic assessment of the Fund: (1) The Fund and other funds under Section 34 of the Act shall be assessed once every three years to assess the financial position, stability, assets and liabilities of the Fund and the overall functioning of the Fund.

The valuation of the fund will be determined by an independent valuation of the final asset.

(2) The valuation of the fund shall be done by the valuation officer as per (1).

A report including details of the proposed charges will be submitted to the Ministry and the Committee.

52. Joint Venture or Cooperative in Investment: Funds are the source of the project.

Any organization or subsidiary company of a joint venture with a domestic or foreign investor, domestic or international financial institution, for the purpose of management and investment operations.

It will be possible to cooperate in settling or investing.

53. Consideration of the composition of the committee: Consideration of the composition of the committee as per section 8 or

If there is a change, the person must be observed or changed in the composition of the virus.

In the same vein, the Nepalese government, the Cabinet, has not considered or changed the formation of the committee.

The decision will also be communicated to the Fund.

54. The fund shall be paid: (1) As required by the Government of Nepal, the Ministry of Foreign Affairs

The fund will be closed on the day of its approval.

(2) The duty of the applicant to comply with the instructions given under sub-paragraph (1)

Yes.

55. Nepal Education Association: The Fund shall establish a Nepal Education Association through the Ministry of Education.

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56. The provisions of the prevailing law shall apply with necessary modifications: The provisions of this Act shall apply

In the case of the subject, in accordance with this Act and in the case of other subjects, in accordance with the provisions of the Companies Act and the Banking Act.

and the provisions of the prevailing law relating to financial institutions are deemed necessary (Mutawats)

(Matualndas) sahhat laguhanuech.

57. Obstruction of the use of alcohol: Any act punishable under this Act or other prevailing laws

This Act provides for the prosecution of any person who is convicted under such law.

It will not be considered an obstruction.

58. Power to make rules: The Nepal Education Commission may make necessary rules for the implementation of this Act.

59. Guidelines, procedures or standards may be formulated: (1) The Fund may formulate guidelines, procedures or standards for the conduct of its operations as required, subject to this Act or the rules made thereunder.

(2) Subsection (1) shall be considered publicly available for information purposes before the commencement of the Manual, Rules or Regulations of the Constitution.